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2 August 1950

My dear Mr. Secretary:

I refer to your letter of July 29th concerning certain differences between our departments as to a reply to the aide-memoire of July 7, 1950, from the Chinese Embassy in regard to the commission of the 7th Fleet. On point 4, the question of what shall be said to the Chinese Government regarding representations made to other governments concerning shipment of military supplies, I defer to the political reasons advanced by you and will accept the wording proposed by the Department of State.

With regard to point 3, the exercise of "visit and search" by the Chinese Navy, I would point out that the restriction of this practice to Chinese vessels only, would deny to the Nationalist forces measures within their capability which would enhance the security of Formosa. As you are aware, the Joint Chiefs of Staff consider that the successful accomplishment of the mission assigned to the 7th Fleet and the denial of Formosa to the Communists is seriously hazarded by Chinese Communist capabilities. Under such circumstances, it is my belief that no restriction as to nationality should be placed on the exercise of "visit and search". While "visit and search" as a defensive measure might not normally be expected to result in undue detention and diversion of vessels found to be innocent, should difficulties be generated with other members of the United Nations, appropriate representations could then be made to the Chinese Government.

I am willing to accept the phrase "territory controlled by the Chinese Government", in lieu of "Nationalist territory" as proposed by this Department.

Sincerely yours,

s/

Louis Johnson

The Honorable

The Secretary of State

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